

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, JULY 2, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JULY 1, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. JCCP5336 TOPGOLF PAYROLL WAGE AND HOUR CASES

Case Management Conference

The case management conference is continued to **Thursday, September 17, 2026, at 8:30 a.m. in Department 3**. The parties shall file a joint case management conference statement seven days before the hearing.

2. M-CV-0073938 TD BANK USA, N.A. v. GONZALEZ, HECTOR

Plaintiff's Motion to Set Aside and Vacate Default and Default Judgment and Dismiss Action with Prejudice [C.C.P. § 473]

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 473, subd. (d).) The default entered on June 8, 2020, and default judgment entered on July 6, 2020, are set aside. The matter shall thereafter be dismissed with prejudice.

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3. M-CV-0095978 ROSEVILLE COBBLESTONE v. BRASWELL, REBECCA

The motion for stay is dropped from calendar as no moving papers were filed with the court.

4. M-CV-0097214 JENSON, ANDREW v. BAL, NORA

Defendant's Motion to Set Aside Default and/or Default Judgment

Preliminary Matters

Plaintiff's requests for judicial notice are granted.

Ruling on Motion

On June 22, 2026, defendant applied ex parte for the court to set aside the default and default judgment entered against her and stay execution of judgment.

The same day, the court granted defendant's ex parte application for stay of execution pending a hearing on a motion to set aside default and default judgment set for July 2, 2026. The court's order required defendant to serve plaintiff with the court's order and file a proof of service evidencing service on plaintiff on or before June 23, 2026. The court also indicated that the failure to serve plaintiff as ordered shall be basis alone to deny the application. Further, the court required defendant to file a motion to set aside default and/or default judgment on or before June 23, 2026.

Here, a review of the court's record reflects defendant has not filed a proof of service indicating she served plaintiff with the court's order nor a motion to set aside default and/or default judgment.

Even assuming arguendo the court deems defendant's ex parte application as a motion to set aside, defendant's motion is nonetheless denied because there is no proposed responsive pleading attached to the ex parte application or declarations filed in support thereof. (Code Civ. Proc., § 473, subd. (b).)

Accordingly, defendant's motion is denied without prejudice.

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5. S-CV-0047322 NEGRETE, GERARDO v. ACE HARDWARE

Plaintiffs' Motion for Preliminary Approval of Class and Representative Action Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Settlement Agreement of Class Action and Private Attorneys General Act Claims and plaintiffs' moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 1, paragraph B of the Settlement Agreement of Class Action and Private Attorneys General Act Claims. The court preliminarily approves the Settlement Agreement of Class Action and Private Attorneys General Act Claims and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on June 10, 2026.

The final approval hearing is set for **Thursday, November 5, 2026, at 8:30 a.m. in Department 3.**

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6. S-CV-0050858 BROUSSARD, BRANDON v. GENERAL MOTORS

Defendant's Motion for Summary Judgment; or in the Alternative Summary Adjudication

Appearances of the parties are required at the hearing.

7. S-CV-0051858 VIVINT SOLAR DEVELOPER v. TYLER, GREGORY

Defendant Gregory Tyler's Counsel Ashley Monique DeGuzman's Motion to be Relieved as Counsel

The motion to be relieved as counsel is denied as moot in light of defendant's substitution of attorney filed with the court on May 1, 2026.

8. S-CV-0052893 RUIZ-ANGEL, ELIAN v. DEFENDER TREE SERVICE

Defendants Douglas W. Cunningham and Carlene J. Cunningham, Trustees of the Cunningham Family 1995 Trust dated February 16, 1995 Motion for Summary Judgment and/or Adjudication

Preliminary Matters

Defendants' request for judicial notice number 1 is denied. Defendants' request for judicial notice number 2 is granted.

Plaintiff's objection is sustained.

Plaintiff's requests for judicial notice are granted.

Ruling on Motion

Defendants move for summary judgment or, in the alternative, summary adjudication as to plaintiff's first amended complaint ("FAC"). A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).)

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In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff’s FAC alleges two causes of action against defendants: (1) negligence and (2) premises liability.

To state a claim for negligence and premises liability, plaintiff must establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.)

Defendants argue both causes of action fail because they did not owe a duty to plaintiff as plaintiff was an employee of the independent contractor, defendant Defender Tree Service, LLC, defendants hired to perform tree services on their property.

The *Privette* doctrine, which defendants rely on, generally provides “a hirer is typically not liable for injuries sustained by an independent contractor or its workers while on the job.” (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 41.) In the summary judgment context, the moving party must establish “it hired an independent contractor to perform certain work, and that the plaintiff is an employee of the contractor who was injured in the course of the work, [then] the burden shifts to the opposing party to come forward with evidence raising a triable issue of fact as to whether an exception to the *Privette* doctrine applies.” (*Degala v. John Stewart Co.* (2023) 88 Cal.App.5th 158, 167.)

Defendants, as the moving party, bear the burden to establish that defendant Defender Tree Service, LLC, was hired as an independent contractor rather than as defendants’ employee. (*Blackwell v. Vasilas* (2016) 244 Cal.App.4th 160, 169.)

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Labor Code section 2750.5 creates “a rebuttable presumption affecting the burden of proof that a worker performing services for which a license is required . . . or who is performing such services for a person who is required to obtain such a license is an employee rather than an independent contractor. (Lab. Code, § 2750.5.) Defendants must establish three factors to show defendant Defender Tree Service, LLC was an independent contractor:

- (a) That the individual has the right to control and discretion as to the manner of performance of the contract for services in that the result of the work and not the means by which it is accomplished is the primary factor bargained for.
- (b) That the individual is customarily engaged in an independently established business.
- (c) That the individual's independent contractor status is bona fide and not a subterfuge to avoid employee status. A bona fide independent contractor status is further evidenced by the presence of cumulative factors such as substantial investment other than personal services in the business, holding out to be in business for oneself, bargaining for a contract to complete a specific project for compensation by project rather than by time, control over the time and place the work is performed, supplying the tools or instrumentalities used in the work other than tools and instrumentalities normally and customarily provided by employees, hiring employees, performing work that is not ordinarily in the course of the principal's work, performing work that requires a particular skill, holding a license pursuant to the Business and Professions Code, the intent by the parties that the work relationship is of an independent contractor status, or that the relationship is not severable or terminable at will by the principal but gives rise to an action for breach of contract.

(Lab. Code, § 2750.5, subds. (a)–(c).)

Moreover, “any person performing any function or activity for which a license is required . . . shall hold a valid contractors' license as a condition of having independent contractor status.” (Lab. Code, § 2750.5.) So, “the presumption of employee status can be rebutted only as to persons who hold a valid contractor's license; the presumption cannot be rebutted as to persons who do not hold a valid contractor's license.” (*Chin v. Namvar* (2008) 166 Cal.App.4th 994, 1004.)

Here, defendants meet their burden to establish they did not owe a duty to plaintiff because they hired defendant Defender Tree Service, LLC—who held a valid contractor’s license—as an independent contractor. (UMF Nos. 5–9, 11–12, 16, 20.) The burden therefore shifts to plaintiff to raise a triable issue of material fact.

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Plaintiff thereafter meets his burden to raise a triable issue of material fact as to whether defendant Defender Tree Service, LLC was defendants' independent contractor or employee such that the *Privette* doctrine does not apply. (Disputed UMF Nos. 5–6, 12; Additional UMF Nos. 3–5, 7–10.) Specifically, plaintiff presents evidence that defendant Defender Tree Service, LLC's contractor's license was suspended before, during, and after the incident giving rise to the litigation. In other words, defendant Defender Tree Service, LLC was required to have a contractor's license for the tree service performed on defendants' property pursuant to Business and Professions Code, section 7026.1, yet its license was suspended and therefore invalid, and the presumption in Labor Code section 2750.5 is that defendant Defender Tree Service, LLC was defendants' employee so the *Privette* doctrine is inapplicable.

Defendants' citation to *Chin v. Namvar* (2008) 166 Cal.App.4th 994 for the proposition that plaintiff is estopped from rebutting the presumption in Labor Code section 2750.5 is unavailing because the case stands for the proposition that defendant Defender Tree Services, LLC—as the one who represented itself as a licensed contractor—is estopped from asserting that its unlicensed status makes it an employee pursuant to Labor Code section 2750.5 not plaintiff who did not represent himself as a licensed contractor.

Accordingly, defendants' motion for summary adjudication is denied as to the negligence and premises liability causes of action and, therefore, their motion for summary judgment is denied.

9. S-CV-0053276 SANCHEZ, JOSE v. D & D CABINETS – SAVAGE

Mediation Status Conference

The mediation status conference is dropped from calendar in light of the parties joint mediation status conference statement filed with the court on June 16, 2026, that includes all the information required by the court.

10. S-CV-0053328 LAFAYETTE FEDERAL CREDIT v. BRATCHER, IRMA

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$33,565.96 in

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unpaid principal plus \$3,578.30 in attorney's fees, \$508.55 in court costs, and \$1,594.36 in interest for a total judgment entered of \$39,247.17.

11. S-CV-0055515 HENSCHER, MATTHEW v. HENGL, KEVIN

Defendants Kevin Hengl, Richard Hengl, Superior Preservation & Construction, and Superior Custom Construction, LLC's Motion for Leave of Court to File an Amended Answer and Cross Complaint

Preliminary Matters

Defendants' objections are overruled in their entirety.

Ruling on Motion

Defendants seek leave of court to file a cross-complaint and an amended answer.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Breach of Contract; (2) Unjust Enrichment; (3) Quantum Meruit; (4) Contribution; (5) Equitable Indemnity; and (6) Declaratory Relief—all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendants acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted. The court similarly finds defendants did not act in bad faith nor is there substantial risk of prejudice to any party if leave is granted to file the proposed amended answer.

Defendants' motion for leave to file a cross-complaint and first amended answer is granted. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a), 473, subd. (a)(1), 576.) Defendants shall file and serve the cross-complaint and first amended answer attached to the declaration of Trevor White on or before **July 13, 2026**.

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12. S-CV-0055748 LAEZMAN, LINDA v. EL DON ESTATES HOA

Demurrer

A review of the court record reveals plaintiffs' first amended complaint was improperly rejected for filing on March 9, 2026. Plaintiffs shall re-file their first amended complaint on or before **July 7, 2026**, and the court will thereafter deem the first amended complaint timely filed. The demurrer to plaintiffs' first amended complaint is continued to **July 16, 2026**, at 8:30 a.m. in Department 3.

13. S-CV-0056214 CARSON, CHRISTOPHER v. BUDAC, ABIGAILA

Defendant Vitas Healthcare Corporation of California's Demurrer to Plaintiffs' Complaint

Defendant demurs to the third, fourth, fifth, and sixth causes of action in plaintiffs' complaint on the grounds the complaint does not allege facts sufficient to state the third cause of action for premises liability, fourth cause of action for negligence per se, fifth cause of action for elderly or disabled neglect, and sixth cause of action for vicarious liability. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Third Cause of Action—Premises Liability

To state a claim for premises liability, plaintiff must establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) The most important element for imposing a duty is control. (*Soto v. Union Pacific Railroad Co.* (2020) 45 Cal.App.5th 168, 177.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state defendant controlled the property such that it owed a

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duty to plaintiffs. Accordingly, the demurrer is sustained with leave to amend as to the third cause of action.

Fourth Cause of Action—Negligence Per Se

Negligence per se is not a separate cause of action but instead “an evidentiary presumption that affects the standard of care in a cause of action for negligence.” (*Turner v. Seterus, Inc.* (2018) 27 Cal.App.5th 516, 534.) The court therefore treats the negligence per se allegations as a negligence cause of action. To that end, “negligence will be presumed if: (1) a person violated a statute or regulation, (2) that violation injured another person or their property, (3) the injury was of a type the statute or regulation was designed to prevent, and (4) the person or property injured was of the class the statute or regulation was designed to protect.” (*Mize v. Mentor Worldwide LLC* (2020) 51 Cal.App.5th 850, 865.)

Plaintiff’s complaint bases their negligence per se allegations on defendant’s alleged violations of Title 22 sections 87466 and 87469, subdivision (d).

Title 22 section 87466 provides

The licensee shall ensure that residents are regularly observed for changes in physical, mental, emotional and social functioning and that appropriate assistance is provided when such observation reveals unmet needs. When changes such as unusual weight gains or losses or deterioration of mental ability or a physical health condition are observed, the licensee shall ensure that such changes are documented and brought to the attention of the resident's physician and the resident's responsible person, if any.
(Cal. Code Regs., tit. 22, §§ 87466.)

Title 22 section 87469, subdivisions (c) and (d) provides

(c) If a resident who has an advance directive and/or request regarding resuscitative measures form on file experiences a medical emergency, facility staff shall do one of the following:

- (1) Immediately telephone 9-1-1, present the advance directive and/or request regarding resuscitative measures form to the responding emergency medical personnel and identify the resident as the person to whom the order refers.
(2) Immediately give the advance directive and/or request regarding resuscitative measures form to a physician, registered nurse or licensed vocational nurse if the physician or nurse is in the resident's presence at the time of the emergency and assumes responsibility.

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(3) Specifically for a terminally ill resident that is receiving hospice services and has completed an advance directive and/or request regarding resuscitative measures form pursuant to Health and Safety Code section 1569.73(c), and is experiencing a life-threatening emergency as displayed by symptoms of impending death that is directly related to the expected course of the resident's terminal illness, the facility may immediately notify the resident's hospice agency in lieu of calling emergency response (9-1-1). For emergencies not directly related to the expected course of the resident's terminal illness, the facility staff shall immediately telephone emergency response (9-1-1).

(4) Facilities that employ health care providers, other than Home Health Agencies or Hospice Agencies, may comply with Health and Safety Code Section 1569.74.

(d) After following the procedure in Section 87469(c)(1), (2), (3), or (4), facility staff shall notify the resident's hospice agency and Health Care Surrogate Decision Maker, if applicable.

(Cal. Code Regs., tit. 22, §§ 87469, subds. (c)–(d).)

Notably, “licensee” is defined as “the individual, firm, partnership, corporation, association or county having the authority and responsibility for the operation of a licensed facility.” (Cal. Code Regs., tit. 22, § 87101, subd. (1)(4).)

Here, when taking the allegations in the complaint as true, plaintiff does not allege facts sufficient to state the above statutes imposed a duty on defendant that defendant thereafter breached. Accordingly, the demurrer is sustained with leave to amend as to the fourth cause of action.

Fifth Cause of Action—Elderly or Disabled Neglect

Neglect is defined as either “(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise [or] (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subds. (a)(1)–(2).) This includes, but is not limited to:

(1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.

(2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole

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reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.

(3) Failure to protect from health and safety hazards.

(4) Failure to prevent malnutrition or dehydration.

(5) Substantial inability or failure of an elder or dependent adult to manage their own finances.

(6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.

(*Id.* at subds. (b)(1)–(6).)

Importantly, neglect refers “not of the undertaking of medical services, but of the failure to provide medical care.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 404.) Also, the act does not provide liability for simple or gross negligence by health care providers. (Welf. & Inst. Code § 15657.2; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 88.) Instead, plaintiff must plead, and courts must address, four factors to determine whether defendants’ conduct constitutes neglect. (*Id.* at p. 406–07.) Specifically, “plaintiff must allege . . . facts establishing that defendant . . . (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) . . . [and 4] the neglect caused the elder or dependent adult to suffer physical harm, pain or mental” (*Ibid.* [internal citations omitted].) Such facts must be plead with specificity. (*Id.* at p. 407.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege specific facts sufficient to state defendant’s conduct constitutes neglect. Accordingly, the demurrer is sustained with leave to amend as to the fifth cause of action.

Sixth Cause of Action—Vicarious Liability

Where, as here, plaintiffs assert a theory of respondeat superior against defendants, “an employer is vicariously liable for the torts of its employees committed within the

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scope of the employment. The plaintiff has the burden of proof to demonstrate the negligent act of the employee was committed within the scope of employment. [Citation.] Whether an act is within the scope of employment is a question of fact, unless the facts are undisputed and no conflicting inferences are possible, in which case the question is one of law.” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 465.) Additionally, “an employee's willful, malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts.” (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296–97.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state the vicarious liability cause of action. Accordingly, the demurrer is sustained with leave to amend as to the sixth cause of action.

In sum, the demurrer is sustained with leave to amend as to the third, fourth, fifth, and sixth causes of action. Plaintiff shall file and serve an amended complaint on or before **July 13, 2026**.

14. S-CV-0056468 KM AUTO REPAIR v. SHIVA AUTO REPAIR

Defendant Ranjeet Singh’s Motion for Leave to File Cross-Complaint

Preliminary Matters

The court first notes that all motions heard on the law and motion calendar must include the language from Placer County Local Rule, Rule 20.2.3, subdivision (C) in the notice of motion.

Moreover, the court, on its own motion, strikes the cross-complaint—filed with the court on February 26, 2026—from the record because it was filed without leave of court after defendants already answered and is therefore an improper filing.

Ruling on Motion

Defendant Ranjeet Singh seeks leave of court to file a cross-complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted

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unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

Defendant does not attach a proposed cross-complaint to his motion for the court's consideration. Thus, the court is unable to determine whether any alleged causes of action are pled with minimal sufficiency to survive a demurrer. Accordingly, defendant's motion is denied without prejudice.

15. S-CV-0056864 ESTATE OF LEONIDAS CASTRO v. JANSEN, WILL

Defendant Will Bryan Jansen's Motion to Strike Portions of Plaintiffs' Complaint

Preliminary Matters

The court notes there is insufficient evidence the parties complied with Placer County Local Rule 20.2.1, which provides "Prior to filing any motion or demurrer, the moving party must make a reasonable and good faith attempt to resolve the matter, and if resolution is not possible, must attempt to coordinate hearing dates with any opposing parties. A declaration setting forth facts supporting such attempt must be filed with the motion. Orders for examination are exempt from the requirements of this section." (Placer County Local Rule, rule 20.2.1.)

Additionally, defendant's notice of motion does not include the required language found in Placer County Local Rule 20.2.3, subdivision (C)(1).

The parties are admonished they must comply with the Placer County Local Rules for subsequent filings.

Ruling on Motion

Defendant moves to strike (1) lines 7 through 10 on page 15, (2) lines 24 through 25 on page 15, and (3) line 19 on page 16 in plaintiffs' complaint regarding the punitive damages allegations on the grounds the complaint does not allege a basis for such relief. (Code Civ. Proc. §§ 435, 436.)

Punitive damages are available "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Malice is "conduct which is intended by the defendant to cause

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injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state the punitive damages allegations and relief. Accordingly, defendant’s motion to strike is granted with leave to amend.

Plaintiffs may file an amended complaint on or before **July 13, 2026**.

16. S-CV-0057858 HATAMI, JULIE v. HARTFORD, JOHN

Plaintiffs/judgment creditors’ application for order for sale of dwelling and adjacent vacant lot is continued to **July 9, 2026, at 8:30 a.m. in Department 3**.

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PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

17. T-CV-0002636 BLASH, ANDREW v. PALISADES TAHOE RESORT

Plaintiff's Counsel William C. Sung, Tiffany L. Luu, and Joseph C. Ramli's Motion to be Relieved as Counsel

Plaintiff's counsel moves to withdraw as counsel of record for plaintiff.

On August 29, 2025, the court granted the parties' stipulation and ordered plaintiff's individual claims to arbitration and stayed the representative PAGA claims pending resolution of arbitration. In this scenario "the action at law sits in the twilight zone of abatement with the trial court retaining merely a vestigial jurisdiction over matters submitted to arbitration to determine, upon conclusion of the arbitration proceedings, whether an award on the merits requires dismissal of the legal action." (*Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 1081, 1096.) The court therefore only has the authority to "appoint arbitrators if the method selected by the parties fails ([Code Civ. Proc.], § 1281.6); grant a provisional remedy but only upon the ground that the award to which an applicant may be entitled may be rendered ineffectual without provisional relief ([Code Civ. Proc.], § 1281.8, subd. (b)); and confirm, correct or vacate the arbitration award ([Code Civ. Proc.], § 1285)." (*Aronow v. Superior Court* (2022) 76 Cal.App.5th 865, 873.)

Plaintiff's motion seeks relief outside of the court's authority. Accordingly, plaintiff's motion is denied without prejudice.